

2. Western Dental is ordered to pay the Fees within thirty (30) days of notice of entry of this order unless on or before such date it has made such other arrangements for the payment of the fees acceptable to the arbitration service provider to permit the arbitration to be rescheduled and proceed with all deliberate speed. Nothing in this order addresses or shall affect any right to any refund of any portion of the Fees in accordance with the rules or agreements governing the arbitration service provider's fees.
3. The moving party shall prepare the order after hearing.

3. 9:00 AM CASE NUMBER: C24-02117
CASE NAME: ADRIENNE THOMAS VS. PACIFICA GAS AND ELECTRIC COMPANY
***HEARING ON MOTION IN RE: LEAVE TO FILE SECOND AMENDED COMPLAINT**
FILED BY: THOMAS, ADRIENNE
TENTATIVE RULING:

Before the Court is a motion by plaintiff Adrienne Thomas to file a second amended complaint. For the reasons set forth, the motion is **GRANTED** on the terms set forth in the conclusion and ruling below.

Background

This action commenced on August 14, 2024 when Plaintiff filed a complaint alleging a cause of action for breach of contract against defendant Pacific Gas and Electric Company, but also making allegations of "illegal business practices, based on fraud." (Compl. ¶¶ 8, 9.) Though Plaintiff asserts her complaint was for Declaratory and Injunctive Relief (Mot. for Lv. p. 2), the complaint on its face sought monetary damages and neither declaratory nor injunctive relief. (Compl. ¶ 10.) The complaint attached an April 9, 2024 "right to sue" letter issued by the Civil Rights Department of the State of California ("CRD," formerly, the Department of Fair Employment and Housing ("DFEH")), which in turn attached a copy of Plaintiff's complaint to the CRD in which she alleged violations of the California Fair Employment and Housing Act, Government Code section 12900, *et seq.* ("FEHA"), including discrimination on various grounds and wrongful termination. PG&E filed an answer to the complaint on September 13, 2024.

PG&E has removed the case to the United States District Court for the Northern District of California three times since the action was filed, on September 13, 2024, December 17, 2024, and July 14, 2025. The case has been remanded to this Court each time by orders of the federal district court reflected in filings made in this Court on November 8, 2024, March 6, 2025, and December 11, 2025.

After the case was filed, Plaintiff apparently participated in an arbitration proceeding, and on June 11, 2025, Plaintiff filed a motion to vacate the arbitration award. Based on Plaintiff's motion to vacate the arbitration award, the arbitration appears to have been conducted pursuant to a grievance procedure in a collective bargaining agreement between Plaintiff's union, Engineers and Scientists of California, Local 20, IFPTE, AFL-CIO & CLC, and PG&E dated March 1, 2023 (the "CBA"). (6/11/2025 Mot. to Vac. Arb. Award Attachment.)

Plaintiff's motion to vacate the arbitration award was set for hearing on September 15, 2025. The

motion was not heard based on PG&E's July 14, 2025 notice of removal of the action to the federal court. Plaintiff attempted to file a first amended complaint two times, on October 16, 2024, while the action was before the federal court based on PG&E's September 13, 2024 notice of removal, and again by filing a motion for leave to file a first amended complaint on June 27, 2025, which was not heard because of PG&E's July 14, 2025 notice of removal. (See Corresp. Memo. dated 10/16/2024; 6/11/2025 Mot. for Lv. to File FAC.)

Plaintiff now moves for leave to file a second amended complaint ("Proposed 2AC"). The Proposed 2AC is attached to the moving papers and includes 17 causes of action. PG&E opposes the motion.

Legal Standards for Motion for Leave to Amend

The Court has broad discretion to grant leave to amend a pleading at any stage in a case. (See Code Civ. Proc. § 473(a) [court may allow amendment "in furtherance of justice, and on any terms as may be proper"].) (See also Code Civ. Proc. § 576 ["Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order."].) "If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion. [Citations omitted.]" (*Morgan v. Superior Court of Los Angeles County* (1959) 172 Cal.App.2d 527, 530.) California has a liberal policy of allowing amendments to pleadings; it is a rare case when leave to amend should be denied, particularly when there is no showing of prejudice to the other side. (*Douglas v. Superior Court* (1989) 215 Cal.App.3d 155, 158; *Hong Sang Market, Inc. v. Peng* (2018) 20 Cal.App.5th 474, 488.)

Defendant's Request for Judicial Notice

PG&E asks the Court to take judicial notice of (a) the CBA (an attachment to Exhibit 1 to the Roberts Declaration in opposition to the motion); (b) an April 14, 2025 Arbitrator's Decision and Award (Roberts Decl. Exh. 2); and (c) multiple documents filed by Plaintiff with the DFEH and federal Equal Employment Opportunity Commission ("EEOC") or issued by the DFEH and EEOC (Roberts Decl. Exhs. 3-9). For the reasons explained below, the Court denies PG&E's request, because the Court does not find the documents relevant to the issues to be determined on the motion. (*Jordache Enterprises, Inc. v. Brobeck, Phleger & Harrison* (1998) 18 Cal.4th 739, 748, fn. 6 [judicial notice denied where "the requests present no issue for which judicial notice of these items is necessary, helpful, or relevant"].)

Analysis

Plaintiff contends she seeks leave to amend to more clearly present her claims with exhibits, modifying or expanding legal theories based largely on facts already pled. She argues there is no prejudice to PG&E because the facts were already alleged, and there is no trial date set in the case. As PG&E concedes, Plaintiff attempted to file her first amended complaint in October 2024, but the filing was rejected as the case had been removed to the federal district court and was not remanded until November 2024. She declares she provided counsel for PG&E a copy of her first amended complaint in November 2024. (Thomas Decl. ¶ 5.) After November 2024, the case was removed to federal district court by PG&E and remanded two more times.

Plaintiff filed a motion for leave to file her first amended complaint in June 2025 after the case had been remanded, and the copy of the proposed first amended complaint attached to that motion lists the same 17 causes of action alleged in the Proposed 2AC. The motion could not be heard because PG&E again removed the case to federal court approximately three weeks later.

PG&E does not contend Plaintiff has unduly delayed in seeking leave to amend or that PG&E will be prejudiced by allowing Plaintiff to file her 2AC, other than by having to defend the claims. There is no dispute that no trial date is set in the case, and discovery is open.

The grounds for PG&E's opposition consist only of PG&E's contention that some, but not all, of the causes of action in the Proposed 2AC are not viable. Specifically, PG&E contends 12 of the 17 causes of action Plaintiff alleged in the Proposed 2AC are time-barred or are otherwise defective or not "viable." PG&E argues leave to amend can be denied " '[w]hen amendment would be futile because the amended [complaint] would be barred by the statute of limitations,' " citing *Royal Carpet Mills, Inc. v. City of Irvine* (2005) 125 Cal.App.4th 1110, 1124. (Opp. p. 10, ll. 19-20.)

The Court declines to determine the motion for leave to amend based on the alleged merit or lack of merit of certain causes of action alleged in the Proposed 2AC. The better course is for the Court to address the merits of an amended pleading on a motion to strike, demurrer, motion for summary judgment, or similar challenge so that the merits issues can be fully briefed by both sides. (*Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 760-761; *Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048.) (See also *Armenta ex rel. City of Burbank v. Mueller Co.* (2006) 142 Cal.App.4th 636, 643 [if the adequacy of the pleading is unclear "the proper course of action would have been to permit amendment, after which defendants could have tested the complaint's sufficiency via demurrer or motion for judgment on the pleadings. [Citation omitted.]"].)

Nevertheless, the Court encourages Plaintiff to consider the issues raised by PG&E in the meet and confer process preceding this motion, and the defects PG&E has raised to the merits of some of the causes of action Plaintiff wishes to plead in the Proposed 2AC. (See Roberts Decl. ¶ 7.) Nothing in this ruling should be construed as any determination of the meritoriousness of any of the proposed causes of action in the proposed 2AC, including those PG&E asserts are time-barred or otherwise defective.

The Court also notes that 'Plaintiff has styled her proposed amended complaint as the second amended complaint, likely to avoid confusion given Plaintiff's attempt to obtain leave to amend to file a first amended complaint in June 2025. Because no first amended complaint was ever filed except as a proposed pleading attached to a motion, the Court directs that the proposed amended pleading should be titled as the "First Amended Complaint" when it is filed.

Though the Court will grant Plaintiff leave to file an amended pleading, leave to amend shall include Plaintiff eliminating one or more of the causes of action PG&E asserts she agreed to drop from the proposed amended complaint, if Plaintiff elects to do so. (Roberts Decl. ¶ 7.) The Court encourages the parties to meet and confer again before Plaintiff files the new First Amended Complaint in the interests of avoiding, or at least narrowing the issues involved in, future law and motion proceedings on the amended pleading.

Conclusion and Ruling

Plaintiff's motion for leave to amend her complaint is **GRANTED**. Plaintiff shall meet and confer with counsel for PG&E regarding the claims to be included in the new First Amended Complaint in light of PG&E's position that several of the claims may be time-barred or otherwise defectively pled. Taking into account the parties' further meet and confer efforts, Plaintiff shall file her first amended complaint **by August 3, 2026**.

4. 9:00 AM CASE NUMBER: C25-01269
CASE NAME: CRAIG ISHIMARU VS. JULIA ISHIMARU
***HEARING ON MOTION IN RE: APPOINTMENT OF APPRAISER PURSUANT TO CODE OF CIVIL PROCEDURE SECTION 874.316; MEMORANDUM OF POINTS AND AUTHORITIES**
FILED BY: ISHIMARU, JULIA A
TENTATIVE RULING:

Defendant Julia Ishimaru ("Defendant") filed a motion for appointment of an appraiser (the "Motion re Appraiser") on February 25, 2026. The Motion re Appraiser was set for hearing on July 6, 2026.

Background

This action was filed May 5, 2025 seeking partition and accounting of real property held jointly by Defendant and plaintiff Craig Ishimaru ("Plaintiff"). See Complaint filed May 5, 2025 (the "Complaint"), ¶¶1-2. Defendant filed the Motion re Appraiser on February 25, 2026 offering two potential appraisers to be appointed in accordance with Code of Civil Procedure section 874.316. See Memorandum of Points and Authorities filed February 25, 2026 as part of Motion re Appraiser ("MPA"), p. 3. The proof of service attached to the Motion re Appraiser reflects service on Plaintiff's counsel. See Proof of Service dated February 25, 2026 as part of Motion re Appraiser. It should be noted that Plaintiff now represents himself. See Substitution filed June 18, 2026.

In a reply to the Motion re Appraiser, Defendant indicates that one of the proposed appraisers, Eric Riseberg, was appointed as the appraiser for separate proceedings in Alameda County. See Reply re Motion for Appointment of Appraiser filed June 26, 2026 (the "Reply"), p. 2. Defendant further describes meet and confer efforts with Plaintiff where Plaintiff indicated willingness to stipulate appointing either of Defendant's proposed appraisers. *Id.*

The Motion is unopposed.

Analysis

The Partition of Real Property Act ("PRPA") governs actions seeking partition of real property where there is no agreement to the contrary. See Code Civ. Proc. § 874.313(a). As a preliminary matter, the court must determine the fair market value of the subject property by ordering an appraisal, unless the parties have agreed to its value or the evidentiary value of the appraisal is outweighed by its cost. *Id.* § 874.316(a), (b), (c). The court shall appoint a disinterested appraiser, licensed in California, to determine the value assuming sole ownership. *Id.* § 874.316(d). Once the appraisal is completed, the appraiser shall file a verified appraisal with the court. *Id.*

Here, the parties agree that the action is governed by PRPA, and it is apparent that the parties agree to the appointment of an appraiser. See Complaint, ¶¶21-23; MPA, p. 3; Reply, p. 2. The Court sees